

**Justification Review Document
for Other than Full and Open Competition
Under FAR 6.302-1(a)(2)**

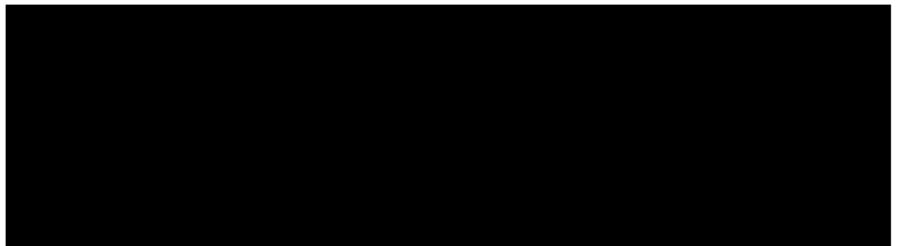
Program/Equipment: Class Justification and Approval (J&A) to allow Contracting Officers to issue other than full and open solicitations for construction contracts at Erbil Air Base (EAB), Erbil, Iraq for Fiscal Year (FY) 2025.

Authority: In accordance with 10 U.S.C. § 3204(a)(1) and as implemented by FAR 6.302-1(a)(2) - for the Department of Defense (DoD), NASA and the Coast Guard, when the supplies or services required by the agency are available from only one or a limited number of responsible sources, and no other type of supplies or services will satisfy agency requirements, full and open competition need not be provided for.

Project / Estimated Amount: Table 1 below provides the projects in order of priority and their estimated amount for award in either the 3rd or 4th quarters of FY 2025.

Table 1

Item No.	Project No.	Project Title	Estimated Amount	Anticipated Quarter for Award	Construction Performance Period
1	2024-0209	Construct EAB North Ramp Rotary Wing Expansion		3QFY25	
2	2024-0375	Construct the Attack Helicopter (AH)-64 Pavement & Aircraft Large Maintenance Shelter (ALAMS)		3QFY25	
3	2023-0317	Construct the EAB Chinook (CH)-47 Pavement and ALAMS		3QFY25	
4	2023-0316	Construct the EAB Black Hawk (UH)-60 Pavement and ALAMS		3QFY25	
5	2024-0376	Construct EAB UH-60 Pavement and ALAMS		3QFY25	
6	2024-0443	Construct Camp Kope Joint Operations Center (JOC)		3QFY25	
7	2024-0445	Construct Camp Kope Maintenance Bay		4QFY25	
8	2024-0444	Construct Camp Kope Gym		4QFY25	
9	2024-0416	Construct Camp Holleyman Special Operations Unit JOC		4QFY25	
10	2024-0310	Construct EAB Forward Arming and Refueling Point (FARP) Maintenance Bay		4QFY25	
Total Amount Requested on J&A TAE-FY25-0003			\$ 15,000,000.00		





Prepared by:

[Redacted]

VALERIE E. MURPHY
Contract Specialist

Date: 03 April 2025

[Redacted]

Contracting Officer:

[Redacted]

YVETTE WALKER
Procuring Contracting Officer

Date: 03 April 2025

[Redacted]

Technical Representative:

[Redacted]

BRYTON JOHNSON
Acting Chief, Engineering and Design Section

Date: 03 April 2025

[Redacted]

Requirements Representative:

[Redacted]

CHIMEADU A. EWOH
OIR Branch Chief

Date: 03 April 2025

[Redacted]

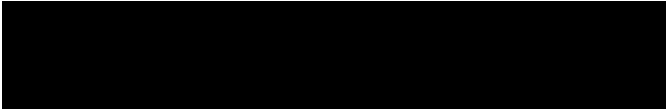
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District Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

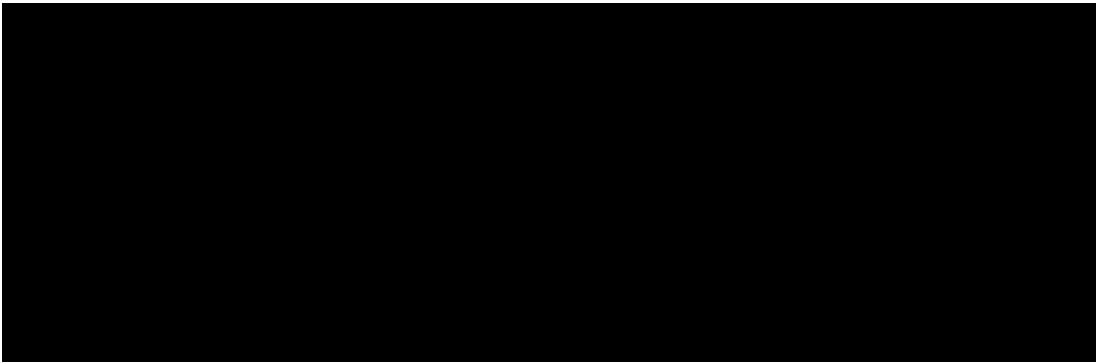
Program Manager:



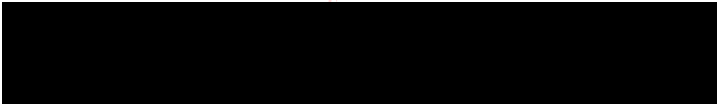
CHIMEADU A. EWOH
OIR Branch Chief



Date: 03 April 2025



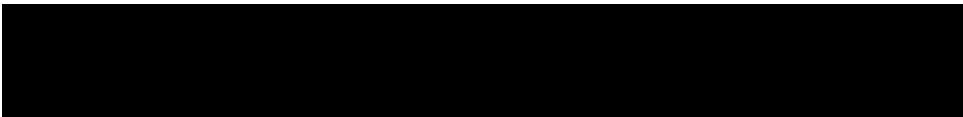
Chief of Contracting:



YVETTE WALKER
Procuring Contracting Officer



Date: 03 April 2025





Justification for Other than Full and Open Competition
Under FAR Part 6.302(a)(2)

- 1. **Contracting Activity:** U.S. Army Corps of Engineers, (USACE), Transatlantic Expeditionary District (TAE), Building 313, Sledgehammer Loop, Camp Arifjan, APO AE 09366.
- 2. **Description of Action:** Class justification and approval (J&A) for other than full and open competition to authorize Contracting Officers to issue solicitations for ten new firm-fixed-price (FFP) construction contracts on the Erbil Air Base (EAB) located inside the Erbil International Airport (EIA) in Erbil, Iraq. The total amount requested for this class J&A is \$15,000,000.00. All projects will be funded with Operations and Maintenance (O&M) Army funds, and will cover future projects planned and anticipated for contract award in Fiscal Year (FY) 2025.
- 3. **Description of Supplies/Services:** The following projects have received validation and have been budgeted. They are in various stages of preparatory work (i.e., design) and are anticipated to be awarded in the 3rd and 4th quarters of FY 2025.

(1) Project No. 2024-0209 - Construct the EAB North Ramp Rotary Wing Expansion. [Redacted]. The scope of work (SOW) consists of the design and construction to [Redacted]. [Redacted]. [Redacted]. [Redacted]. [Redacted]. [Redacted]. [Redacted]. [Redacted]. [Redacted].

(2) Project No. 2024-0375 - Construct AH-64 Pavement and Aircraft Large Area Maintenance Shelter (ALAMS). [Redacted]. The SOW consists of the design and construction of [Redacted]. [Redacted]. [Redacted]. [Redacted]. [Redacted]. [Redacted]. [Redacted]. [Redacted]. [Redacted]. [Redacted].

(3) Project No. 2023-0317- Construct EAB Chinook Helicopters (CH)-47 Pavement and ALAMS. [REDACTED]. The SOW consists of design and construction of [REDACTED]

(4) Project No. 2023-0316 – Construct EAB Black Hawk (UH)-60 Pavement and ALAMS. [REDACTED]. The SOW of this project consists of the design and construction of [REDACTED]

(5) Project No. 2024-0376 - Construct EAB UH-60 Pavement and ALAMS. [REDACTED]. The SOW of this project consists of the design and construction of [REDACTED]

(6) Project No. 2024-0443 - Construct Camp Kope Joint Operations Center (JOC). [REDACTED]. The SOW consists of the design and construction of [REDACTED]

(7) Project No. 2024-0445 - Construct Camp Kope Maintenance Bay. [REDACTED]. The SOW consists of construction [REDACTED]

[REDACTED]

(8) Project No. 2024-0444 - Construct Camp Kope Gym. [REDACTED]
The SOW consists of construction of [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

(9) Project No. 2024-0416 – Construct Camp Holleyman Special Operations Unit JOC (SUPCEN JOC). [REDACTED]. The SOW consists of the construction of [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

(10) Project No. 2024-0310 - Construct EAB FARP Maintenance Bay. [REDACTED]
[REDACTED]. The SOW consists of construction of [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

4. **Authority Cited:** Title 10 U.S.C. section 3204(a)(1) as implemented by FAR Subpart 6.302- 1(a)(2), for the DoD, NASA and the Coast Guard, when the supplies or services required by the agency are available from only one or a limited number of responsible sources, and no other type of supplies or services will satisfy agency requirements, full and open competition need not be provided for.

5. **Reason for Authority Cited:** This action requires the use of FAR 6.302-1(a)(2) authority as the Kurdistan Regional Government's security requirements limit the vendors with whom the U.S. Government may contract for work on EAB. The construction services required to

be solicited by TAE are available from only a limited number of responsible sources that have been cleared by the Kurdistan Regional Government and the Asayish Security Forces to access and perform work at EAB and are included on the "Asayish Approved Vendor List".

a. **Background:** The military EAB land is located within the boundaries of the EIA. All U.S. and coalition occupants of EAB are guests of the Kurdistan Regional Government. The security entrance to EIA is the same security entrance to EAB. The U.S. Government does not control access to the airbase. In recognition of the Strategic Framework Agreement of a Relationship of Friendship and Cooperation between the United States of America and the Republic of Iraq that was entered into force on January 1, 2009, a memorandum of understanding (MOU) between the U.S. Central Command (CENTCOM) and the Kurdistan Regional Government was established and signed on November 25, 2022. This MOU recognizes that the Kurdistan Regional Government is responsible for security at EIA. The Kurdistan Regional Government and its Asayish Security Forces have developed a list (the "Asayish Approved Vendor List") as part of its own security measures for the airport and airbase. The purpose of the Asayish Approved Vendor List is to meet the Kurdistan Regional Government's security requirements to ensure all vendors with access to EIA and EAB do not have ties or associations with terrorist organizations.

b. **Justification:** The Asayish Security Forces control security at EIA. Vendors wishing to conduct business within EIA at EAB must go through a vetting process and security screening by the Asayish Security Forces to enter EIA and gain access to EAB. Prospective vendors provide documentation to the Kurdistan Regional Government and a background check is conducted on each vendor by the Government to ensure the firm is a legitimate company. This information is provided to the Asayish Security Forces, who conducts an additional background check of their own. The purpose of the additional background check is to ensure that the vendor does not have any connection with terrorist forces. Asayish Security Forces present findings to the Kurdish Regional Security Office (KRSO). KRSO presents a recommendation to the Ministry of Interior (MOI) who will approve or deny the addition of the vendor to the Asayish Approved Vendor List and inform KRSO of its decision. The KRSO will inform the Asayish Security Forces of the decision and, if approved, the vendor will be notified. Approved vendors are added to the Asayish Approved Vendor List which is maintained by the Asayish Security Forces.

The U.S. Government will solicit the requirements listed in Table 1 to the entire Asayish Approved Vendor List. Only those firms that are responsible and responsive and have acceptable [REDACTED] will be eligible for award of the resulting contracts.

c. **Alternatives:** There are no alternatives to limiting competition as described above. The Kurdistan Regional Government is responsible for security at EIA and will not allow any vendor not on the Asayish Approved Vendor List to have access to EIA. Because EAB is located within EIA, vendors not on the Asayish Approved Vendor List would not be able to gain access to EAB to execute the construction projects identified in paragraph 3 above. Soliciting the procurements as full and open competition to vendors not on the Asayish Approved Vendor List is not practicable. Prospective vendors that are not on the Asayish Approved Vendor List at the time of solicitation would not have sufficient time to submit a registration package for review and receive approval to be added to the Asayish Approved Vendor List within the 30-calendar day response time articulated by FAR 5.203-Publicizing and response time. The U.S. Government has no ability to affect the Asayish Approved Vendor List vetting process, and there is no timeframe established to complete the review and approval process.

d. **Impacts:** There is no alternative to solicit the requirements as other than full and open competition and failing to do so will adversely impact the U.S. Government carrying out Operation Inherent Resolve. The Kurdistan Regional Government is solely responsible for security at EIA. Only vendors on the Asayish Approved Vendor List are able to gain admission into EIA to access EAB to perform the construction requirements. Full and open competition with offerors not already on the approved Asayish Approved Vendor List is not feasible.

This Class J&A, including the listed projects, are a direct result of the retrograde of bases primarily AAAB. The delays and negative impacts speak to implications from not completing these projects to support a contingency environment. This Class J&A is being pursued because the listed projects require performance inside the EAB, which requires access through the EIA. Only vendors on the Asayish Approved Vendor List vetted by the Kurdish Regional Government can gain inside the parameters of the EIA to access the EAB which is in the center of the EIA. The [REDACTED] mission is result of priorities being handed down from the Secretary of Defense and CENTCOM. These projects have received validation, have been budgeted and are prioritized for award in the 3rd and 4th quarters of FY 2025. Due to the time remaining in FY 2025 (6 months) to execute 10 projects, the limited resources in personnel within TAE, and the operational and mission needs of these projects in support of OIR, it is a both cost effective and time efficient to process one Class J&A for all 10 projects versus stand-alone J&As per requirement for other than full and open competition; competition limited to the Asayish Approved Vendor List.

The impacts on mission for each requirement if not awarded is described below:

(1) Project No. 2024-0209 - Construct the EAB North Ramp Rotary Wing Expansion.
This requirement is needed

[REDACTED]

(2) Project No. 2024-0375 - Construct AH-64 Pavement and ALAMS.

[REDACTED]

(3) Project No. 2023-0317- Construct EAB CH-47 Pavement and ALAMS. This requirement is

[REDACTED]ts.

(4) Project No. 2023-0316 - Construct EAB UH-60 Pavement and ALAMS.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

(5) Project No. 2024-0376 - Construct EAB UH-60 Pavement and ALAMS. This project [REDACTED]

[REDACTED]'s technical [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

(6) Project No. 2024-0443 - Construct Camp Kope JOC. The [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

(7) Project No. 2024-0445 - Construct Camp Kope Maintenance Bay. Maintenance of the vehicles and equipment [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

(8) Project No. 2024-0444 - Construct Camp Kope Gym. Physical fitness in military settings is essential for operational readiness and personal resilience. Gyms are crucial on military installations because physical fitness is not just encouraged, but essential for service members. Rigorous training not only enhances combat capabilities but also fosters a sense of discipline and teamwork among Service Members. The construction of the Camp Kope gym will be the designated location for required physical training. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

(9) Project No. 2024-0416 – Construct Camp Holleyman SUPCEN JOC. Due to

[illegible]

(10) Project No. 2024-0310 - Construct EAB FARP Maintenance Bay. The current location where the mechanics conduct maintenance [REDACTED]

hours of

Efforts to Obtain Competition: In accordance with FAR 5.202(a)(12), the resulting contract actions awarded under this J&A will not be synopsisized. The proposed contract action is by a Defense agency and the proposed contract action will be made and performed outside the United States and its outlying areas, and only local sources will be solicited. The current Asayish Approved Vendor List contains seventy approved vendors. These vendors have been vetted in JCCS and have been identified as the only vendors authorized to perform work in that region. Solicitations for projects listed in paragraph 3 above will be competed among all vendors included in the latest Asayish Approved Vendor List. All firms on the Asayish Approved Vendor List will be notified that a solicitation is available in the Procurement Integrated Enterprise Environment (PIEE) solicitation module. The

solicitations will be restricted to only the Asayish Approved Vendor List and the proposal managers from each firm identified under the PIEE solicitation module will receive an e-mail notification that an opportunity has been posted.

7. Actions to Increase Competition: At this time, only vendors on the Asayish Approved Vendor List are granted access to EAB. Vendors are informed that the construction efforts at EAB are restricted to only those vendors on the Asayish Approved Vendor List during the pre-solicitation and solicitation phase. Previously, vendors were advised of the Asayish Approved Vendor List approval process via an announcement using the System for Award Management (SAM) site. The Government was updated and instructed by EAB not to post any information associated with the Asayish Approved Vendor List or the approval process due to concerns with security and the integrity of the vendor vetting process. As directed by EAB, the TAE currently advises vendors seeking inclusion in the Asayish Approved Vendor List to register for security clearance access through the Erbil-based Asayish Directorate.

Although the imposition of the Asayish Approved Vendor List limits the available contractor pool, USACE TAE continues to encourage competition in Iraq for performance within EAB. During the 2024 Federal Small Business Conference (SAME) held in New Orleans, LA, 20 – 22 November 2024, USACE TAE manned a booth to share forecasted work within the region. USACE TAE identified various contractors interested in doing business with the U.S. Government for performance in EAB, Iraq. The vendors were informed of the existing restricted list of approved vendors and were provided the link above outlining the registration process and procedures. In addition, through Vendor Engagements and Capability Briefings held in Kuwait, as recently as 13 January 2025, USACE TAE has also taken advantage of the opportunity to socialize with industry the USACE work anticipated at EAB, as well as informing the vendors about the vetting requirements to perform within EAB, Iraq.

8. Market Research: The current Asayish Approved Vendor List is dated 18 October 2024 and includes seventy vendors as confirmed by the EAB Task Force Integrator Badging Non-Commissioned Officer In Charge (NCOIC) on 09 February 2025. EAB is in a sensitive location and only those vendors who are approved on the Asayish Approved Vendor List are authorized to perform work on EAB. Therefore, conducting market research through SAM.Gov will not change or increase the field of competition. For example, market research was conducted in accordance with FAR 10.002 by the USACE TAE Contracting Division in November 2023 through SAM.Gov. A notice of intent (NOI) was posted on SAM.Gov for 15 days beginning 20 November 2023 and ending on 04 December 2023. The NOI informed vendors of the upcoming projects for EAB as well as the restrictions imposed by the Asayish Approved Vendor List. Interested vendors were requested to be active in SAM.Gov and to submit a capability statement not later than 04 December 2023. 25 companies expressed interest in the projects. The Government evaluated the responses received and identified that 20 of the 25 companies (roughly 80%) were not currently included on the Asayish

Approved Vendor List. The Kurdish Government at EAB is the only authority for adding or deleting vendors from the Asayish Approved Vendor List and notifies the Government of any changes through an updated list.

(a) **Interested Sources:** The J&A will be made available IAW FAR 6.305 in which the justification will be posted within 14 days after the contract award. As confirmed by the Task Force Integrator Badging NCOIC on 09 February 2025, there are 70 approved vendors on the Asayish Approved Vendor List dated 18 October 2024. The disclosure of the list is procurement sensitive. Vendors on the list demonstrate continued interest in doing business with DoD and USACE. Every procurement solicited for performance within EAB utilizing the Asayish Approved Vendor List yields an average – of five to seven proposals reflecting there is ample interest and available vetted sources to execute project efforts within EAB.

9. Other Facts:

a. Procurement history:

(1) **Previous Construction Contracts issued by TAE at EAB:** Table 2 below provides a list of projects awarded by TAE for performance at EAB in FYs 2020 – 2024, to include three of five projects identified in FY 2024 Class J&A Control Number TAE-FY24-0002:

Table 2

Item No.	Contract Number	Project Title	Contract Award Date	Award Amount
1	W5J9JE20C0001	Erbil Taxiway Repairs	25-Sep-20	\$5,446,073.92
2	W5J9JE22C0003	Construction of Roberts Dining Facility	30-Jun-22	\$2,472,000.00
3	W5J9JE22C0005	Construction of Strike Dining Facility	26-Sep-22	\$2,498,000.00
4	W5J9JE22P0001	Lease of Non-Tactical Vehicles	10-Mar-22	\$ 63,624.60
5	W5J9JE23C0002	Renovations of the North Old EIA	25-Sep-23	\$ 542,252.00
6	W5J9JE24C0003	Construction of No Mercy Aircraft Maintenance Hanger	30-Sep-24	\$2,139,860.00
7	W5J9JE24C0005	Construction of Combat Aviation Brigade Headquarters	28-Sep-24	\$1,250,000.00
8	W5J9JE24C0006	Construction of Vehicle Maintenance Hardstand Building	29-Sep-24	\$1,104,016.39

The two projects identified in the approved Class J&A Control Number TAE-FY24-0002 not solicited in FY 2024 are (1) the Construction of the South Entry Control Point and (2) the Counterintelligence Team 250 Compound. Due to the customer's changing priorities, these two projects will not be solicited in FY 2025 and are not included in Class J&A Control Number TAE-FY25-0003.

(2) **Competitive Status:** Contract actions 2-8 in listed in Table 2 were solicited as other than full and open competition to the vendors on the approved Asayish Approved Vendor List. Contract action W5J9JE20C0001 was competed full and open, as discussed below.

(3) **Previous Authority:** identified Contract actions 2-8 listed in Table 2 were procured in accordance with Title 10 U.S.C. § 3204(a)(1) as implemented by FAR Subpart 6.302-1(a)(2), for the DoD, NASA and the Coast Guard, when the supplies or services required by the agency are available from only one or a limited number of responsible sources, and no other type of supplies or services will satisfy agency requirements, full and open competition need not be provided for.

(4) **Justification Summary:** The MOU reference in paragraph 5(a) between the U.S. Central Command and the Kurdistan Regional Government provides that the Kurdistan Regional Government is responsible for security at EIA/EAB, and only vendors that are vetted and approved by the Asayish Security Forces are allowed access to EAB. Therefore, competition, by necessity, must be limited to those vendors that are on the Asayish Approved Vendor List with approval to access EAB and perform the requirement.

(5) **Previous use of Full and Open Competition:** Contract W5J9JE20C0001 Erbil Taxiway was solicited and awarded as full and open in 2020, prior to the 25 November 2022 MOU that limits vendor access to EAB.

(6) **Unusual Patterns:** N/A

(7) **Prior Justification:** All projects since the establishment of the MOU have been solicited as other than full and open under an approved J&A.

10. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Name: BRYTON JOHNSON Date: 03 April 2025

Title: Acting Chief, Engineering and Design Section Signature: 

11. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Name: CHIMEADU A. EWOH Date: 03 April 2025

Title: OIR Branch Chief Signature: 

12. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated price for these contract actions will be fair and reasonable. This determination is made based upon the development of the independent Government construction working cost estimate which was developed utilizing construction cost estimation software with the local area price book. Certified cost and pricing data is not anticipated based on the expectation of adequate price competition among the vendors on the Asayish Approved Vendor List (FAR 15.403-1(b)(1)).

Name: YVETTE WALKER Date: 03 April 2025

Title: Procuring Contracting Officer Signature: 

13. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Name: YVETTE WALKER Date: 03 April 2025

Title: Procuring Contracting Officer Signature: 

Approval

Based on the foregoing information, I hereby approve this class justification for the procurement of construction contracts listed above for performance at Erbil Air Base, Erbil, Iraq on an other than full and open competition basis, at an estimated value of \$15,000,000.00, and pursuant to the authority of 10 U.S.C. § 3204(a)(1) as implemented by FAR 6.302-1(a)(2), subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for this acquisition.

APPROVAL:

LILLIAN T. WATSON
Alternate Advocate for Competition